

KNOW YOUR RIGHTS

Legal Notice & Procedural Compliance Brief

1. Document Summary

Category: Police & Criminal Process

Sub-type: Arrest memo

Assessment: This is an arrest memo prepared under Section 47 read with Section 43 of the Bharatiya Nagarik Suraksha Sanhita, 2023, documenting the arrest of Mr. Rupam Deka by police with all mandatory procedural compliance details including medical examination, witness attestation, and legal rights certification.

Severity of Procedural Compliance Violations

 **Serious Concerns**



1 check(s) could not be verified from the information given.

■ **DEFAULT BAIL: May be Non-Compliant**

No chargesheet filed as of today. Default bail eligibility date was 02-05-2026 (109 days ago) — 60-day window (offence up to 7 years; ASSUMED as one day after arrest (production date not stated in document) — verify against the actual remand order). Default bail is now a matter of right.

2. Procedural Compliance Findings

S.35(3) BNSS notice before arrest [Arnesh Kumar (2014) / Satender Kumar Antil, 2026 INSC 115]

Status: May be Non-Compliant

Offence punishable up to 7 years (looked up from cited section); arrest was made after the event on the basis of investigation, and no other arrest power under S.35(1) has been established. No mention of the mandatory S.35(3) notice. Per Satender Kumar Antil (2026 INSC 115): notice is the rule and arrest the exception. The arrest may be illegal if no notice was in fact served.

Threshold basis for arrest without warrant [cognizability of the offence]

Status: Compliant

The cited offence(s) are cognizable — police ordinarily have power to arrest without a warrant. This does not by itself confirm the specific arrest power exercised was lawful; see the notice and other checks below for that.

Written grounds of arrest furnished to arrestee [Prabir Purkayastha (2024) / Vihaan Kumar, 2025 INSC 162]

Status: May be Non-Compliant

The document does not mention of written grounds of arrest recorded being furnished. Per Vihaan Kumar (2025 INSC 162): failure to furnish written grounds violates Article 22(1), renders the arrest itself illegal, and is a ground for bail even where statutory bail restrictions exist — the burden is on the state to prove grounds were furnished.

Arrest memo attested by witness, family informed, medical exam [DK Basu (1997)]

Status: **Compliant**

Witness attestation, family notification, and medical exam all recorded.

Woman not arrested between sunset and sunrise [S.46(4) CrPC/ Sheela Barse]

Status: **Not Applicable**

Arrestee is not female.

Female officer involved in custody/interrogation of female arrestee [Sheela Barse (1983)]

Status: **Not Applicable**

Arrestee is not female.

Produced before magistrate within 24 hours [Art. 22(2)/S. 58 BNSS]

Status: **Cannot Determine**

Production-before-magistrate time not stated in this document.

Default bail on chargesheet delay [S.187 BNSS / S.167(2) CrPC]

Status: **May be Non-Compliant**

No chargesheet filed as of today. Default bail eligibility date was 02-05-2026 (109 days ago) — 60-day window (offence up to 7 years; ASSUMED as one day after arrest (production date not stated in document) — verify against the actual remand order). Default bail is now a matter of right.

Overall Assessment: 3 procedural defect(s) found or suspected. Arrest may be legally vulnerable.

3. Missing or Unclear Information

- No specific factual details provided regarding the alleged cheating transaction (dates, amounts, parties involved, nature of property/delivery)
- No calculation or breakdown of the alleged cheated amount is provided
- No supporting documents (evidence of cheating, forgery documents, transaction records) are referenced or stated to be attached
- No explicit deadline for response or appearance before court is stated in the arrest memo
- The arresting officer's authority to issue this notice is not independently verified beyond designation
- No details of the underlying FIR No. 58/2026 or its contents are provided to substantiate the grounds for arrest
- No information about whether the accused was produced before a magistrate or the timeline for such production

5. Documents to Gather

- Copy of the FIR (if registered)
- Any written notice received from police (Section 35/41A, Section 94/91)
- Identity proof
- Names and badge numbers of investigating officers, if known

■ Any prior correspondence with the police station

This brief is generated by an automated analysis tool and does not constitute legal advice. Findings marked 'May be Non-Compliant' are inferences drawn from the absence of information in the source document, not confirmed violations. Consult a qualified advocate before taking any legal action.